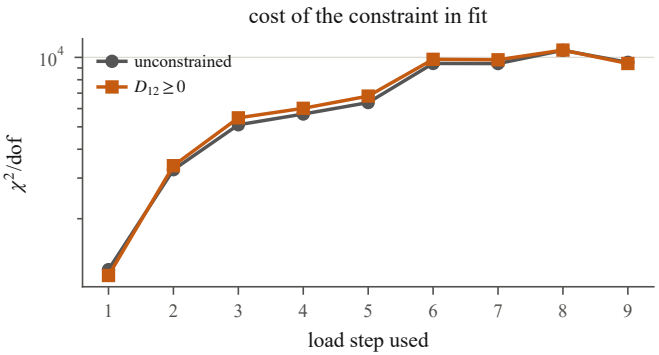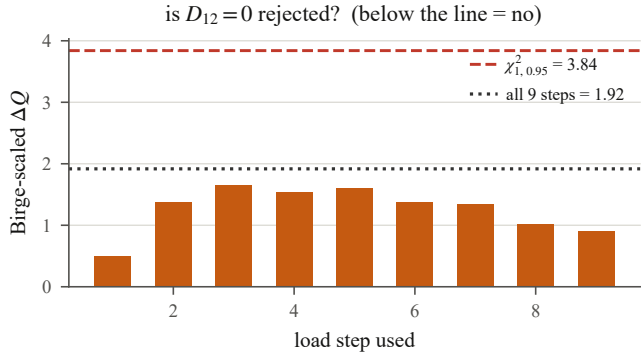The constraint is nearly free, and never rejected